

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant that was listed on the Answer.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$24,252.07, plus costs, less any credits for payments received.

The Defendant made payments of \$13,522.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$10,730.07.

Plaintiff shall prepare and submit a proposed order and judgment.

**3. 9:00 AM CASE NUMBER: L24-02218
CASE NAME: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY VS. CHRISTOFER ACOSTA
*HEARING ON MOTION IN RE: MOTION TO AMEND JUDGMENT AND OF NONAPPEARANCE FILED
BY PLN ON 1/8/26
FILED BY: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY
*TENTATIVE RULING:***

Background

Plaintiff filed a Motion to amend the Judgment, which was entered on 1/13/25, and list the Defendant, Christina Vargas Acosta, as the defendant under Section 5a) of the form of the Judgment.

The Motion was served on the Defendant and is unopposed.

The Judgment, granted 1/13/25, in favor of Plaintiff, inadvertently listed the Defendant as a cross-defendant.

Analysis

California Code of Civil Procedure §187 provides that a California court may use "all the means necessary" when the course of proceeding is not specifically provided for by the Code of Civil Procedure or other statute to carry its jurisdiction into effect:

"... When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this code." Code of Civil Procedure Section 187.

California Code of Civil Procedure §473 (d) further provides that the court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.

In the instant matter, the entry of Defendant as a Cross Defendant in the Judgment was clearly a clerical error. This court will exercise discretion and grant Plaintiff leave to amend the Judgment and list Defendant in the appropriate section of the form.

Disposition

Motion of Plaintiff is granted.

Plaintiff shall prepare and submit a proposed order and amended judgment.

4. 9:00 AM CASE NUMBER: L24-02377

CASE NAME: BANK OF AMERICA N.A. VS. CARLOS GONZALEZ

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION FILED BY PLN ON 11/24/25**

FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely. Notice was provided by mail to counsel for Defendant.

This Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee